

		Defendant is ORDERED to serve further, verified, code compliant responses to Plaintiff's Special Interrogatories, Set Two, Numbers 2-9, without objections, no later than September 10, 2026. Moreover, the Court IMPOSES monetary discovery sanctions upon Defendant's counsel, Goe & Forsythe, LLP, in the total collective amount of \$2,962.50, due and payable to Versus Law Group, APC, no later than thirty (30) days after receipt of notice of this Order. Plaintiff shall give notice.
2.	30-2021-01198262-CU-BC-WJC CA-MRE Holdings, LLC vs. Sierra Creek, LLC	Before the Court is a Motion to Quash ("Motion") plaintiff CA-MRE Holdings, LLC's ("Plaintiff") Deposition Subpoena for the Production of Business Records brought by defendant Russel Singer ("Defendant") and nonparty Adobe Oil Development Corporation ("Adobe") (collectively, "Movants"). ROA 291. Movants seek an order, pursuant to California Code of Civil Procedure Section 1987.1, quashing Plaintiff's Deposition Subpoena for the Production of Business Records dated June 19, 2026, and noticed for production on July 15, 2026 (the "Adobe Subpoena"), in its entirety, or in the alternative, modifying it and issuing a protective Order. ROA 291. Movants additionally seek an order, pursuant to California Code of Civil Procedure Section 1987.2, imposing monetary sanctions upon Plaintiff for Movants' reasonable expenses, including attorney's fees. ROA 370, pp. 8, 9. Plaintiff requests that the Court deny Movants' motion and seeks an order compelling compliance with the Adobe Subpoena within three (3) days, or prior to the scheduled trial on August 31, 2026. ROA 352 p.15. I. Notice of Motion Requirements Authorization of relief directing compliance with a subpoena, "upon motion reasonably made" invokes the notice and hearing requirements generally applicable to

motions. *See* Cal. Civ. Proc. Code § 1987.1. In *Gonzales v. Superior Court*, the court held that only grounds specified in a motion may be considered and that a separate form of affirmative relief could not be granted without notice that such relief was being sought. *Gonzales v. Super. Ct.*, 189 Cal. App. 3d 1542, 1545–1546 (1987). *See* Cal. Civ. Proc. Code §§ 1003 (defining a motion), 1005 (notice requirements for certain motions); *see also* *Cuff v. Grossmont Union High School*, 221 Cal. App. 4th 582, 596 (2013) (a party must make its own affirmative motion in order to seek “the opposite relief”).

The Court notes that Plaintiff’s request, seeking an order compelling compliance with the Adobe Subpoena, brought before the court in Plaintiff’s opposition to Movants’ Motion, is procedurally improper and the Court therefore declines to consider the relief sought. *See generally* ROA 352 (Plaintiff’s Opposition to Movants’ Motion).

II. Motions to Quash

A motion to quash seeks to modify a subpoena or nullify it in its entirety because it is defective or seeks impermissible information. A motion to quash provides the trial court with the opportunity to determine the validity of a subpoena and whether the information sought should be produced. *In re R.R.*, 187 Cal. App. 4th 1264, 1277 (2010). Specifically, California Code of Civil Procedure Section 1987.1 provides:

[w]hen a subpoena requires the attendance of a witness or the production of . . . documents . . . the court, upon motion reasonably made by . . . [a party or a witness], or upon the court’s own motion . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms and conditions as the court shall declare, including protective orders.

Cal. Civ. Proc. Code § 1987.1.

Additionally, “the court may make any other orders as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of

	the right of privacy of the person.” <i>Id.</i> Typically, a motion to quash is filed before the time of production, but the court has the authority to consider the motion even after the date of production. <i>In re R.R., supra</i>, 187 Cal. App. 4th at 1278. If granted, the subpoena will be unenforceable because “quashing the subpoena” will make it void. <i>See Quash</i>, Merriam-Webster Law Dictionary (last updated August 4, 2026). Rule 3.1345 of the California Rules of Court requires motions to compel or to quash production of documents at a deposition to be accompanied by a separate statement when involving the <i>content</i> of a discovery request or the responses. Cal. Rules of Ct., r. 3.1345(a). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See generally Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008) (the court denied a motion to compel when plaintiff’s separate statement fell short of the requirements under the California Rules of Court). “A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue.” Cal. Rules of Ct., r. 3.1345. The separate statement must include the following: (i) the text of the request; (ii) the text of the response and any supplemental responses; (iii) a statement of the factual and legal reasons for compelling further responses; and (iv) any other information required to understand the request such as definitions, instructions, and summaries of relevant documents. <i>Id.</i> The separate statement forces moving parties to make pointed arguments and to specify which arguments and objections apply to which specific request for production. Absent this level of detail provided by moving parties, the Court is left to cobble together a clear and cogent argument, piecemeal. The Court is not inclined to adopt this duty on behalf of moving parties. Here, Movants’ Motion challenged the contents of
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Plaintiff's discovery request. *See generally* ROA 291. Consequently, Movants' Motion, under California Rules of Court rule 3.1345, is required to be accompanied by a separate statement. Cal. Rules of Ct., r. 3.1345. The Court finds that Movants' Motion lacked the required separate statement under California Rules of Court rule 3.1345.

Accordingly, Movants' Motion is procedurally invalid and is therefore **DENIED** on that basis.

III. Motions for Protective Order

A protective order does not seek to nullify the subpoena; rather, it permits production of discovery but limits disclosure and use of discovered information. *Nativi v. Deutsche Bank Nat'l Tr. Co.*, 223 Cal. App. 4th 261, 318 (2014).

Unlike a Motion to Quash under California Code of Civil Procedure Section 1987.1, a Motion for Protective Order under Section 2025.420 must be accompanied by a meet and confer declaration that complies with the provisions of Section 2016.040. Cal. Civ. Proc. Code § 2025.420(a).

Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a).

Additionally, the moving party's declaration "shall include whether the moving party met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b).

Here, the Court finds that Movants' Declaration in Support of their Motion fails to satisfy the meet and confer requirements of California Code of Civil Procedure Section 2016.040 required under California Code of Civil Procedure 2025.420 when seeking a Protective Order. ROA 291, pp. 15-17.

Accordingly, Movants' Motion for a Protective Order is also procedurally invalid and therefore **DENIED**.

IV. Discretionary Sanctions for Misuse of the Discovery Process

"California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to 'misuse of the discovery process.'" *Doppes v. Bentley Motors, Inc.*, 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code §§ 2023.030(b)-(d), 2030.290(c), 2031.300(c).

"In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion . . . if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." Cal. Civ. Proc. Code § 1987.2(a).

The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." *Doe v. United States Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434 (2011).

Additionally, "the court shall impose that sanction [authorized by any provision of this title] unless it finds . . . that the other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2023.030(a).

Sanctions "should not provide a windfall to the opposing party or place them in a better position than if the discovery had been properly conducted." *Victor Valley Union High School Dist. v. Super. Ct.*, 91 Cal. App. 5th 1121, 1159 (quoting *Kwan Software Eng'g, Inc., v. Hennings*, 58 Cal. App. 5th 57, 59).

To avoid sanctions, an unsuccessful opponent to a motion to compel may show "substantial justification" for his or her position—i.e., a rational basis to conclude that the party's failure to fulfill its discovery obligations was

	justified. <i>Pollock v. Super. Court</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)); see also Cal. Civ. Proc. Code § 2030.090(d) (availability of monetary sanctions when making or opposing a motion for a protective order). A Court “must make an explicit finding this [substantial justification] exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer United States, Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, as outlined above, Movants did not include a separate statement accompanying their Motion to Quash as required by California Rules of Court. See generally ROA 291. Furthermore, Movants’ Declaration fails to satisfy the meet and confer requirements under California Code of Civil Procedure Section 2016.040 required when seeking a Protective Order. ROA 291, pp. 15-17. Accordingly, the Court finds that monetary sanctions are appropriate to prevent further misuse. V. Assigning Liability for Monetary Discovery Sanctions California Code of Civil Procedure Section 1987.2 permits a court to impose monetary sanctions on a party if the court finds that a motion was made or opposed in bad faith or without substantial justification. Cal. Civ. Proc. Code § 1987.2(a). When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing
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	to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 261 (1993) (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013); <i>see Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 829-832 (2023). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (the court found the trial court did not err by declining to make counsel jointly and severally liable for the monetary sanctions). Here, the Court finds that Defendant's failure to accompany the herein Motion with a separate statement required under California Rules of Court rule 3.1345, and Defendant's failure to satisfy the meet and confer requirements for a motion brought under California Code of Civil Procedure Section 2025.420, Motion for Protective Order, is not attributable to client misconduct. Instead, the Court finds that the misuse of the discovery process is attributable to Movants' counsel. However, Plaintiff does not seek sanctions. As Movants' counsel is not on notice of the potential imposition of monetary sanction, to impose sanctions at this time would violate due process. Accordingly, the Court finds that the imposition of sanctions would result in injustice. The Court exercises its discretion not to impose sanctions. Movants' Motion to Quash Deposition Subpoena for the Production of Business Records (ROA 291) is DENIED.
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		Plaintiff to give notice.
3.	30-2024-01423858-CU-WM-CJC S. vs. Regents of the University Of California	Before the Court are two (2) Motions to Compel Further Production of Documents (“Motions”), brought by plaintiff Z.S. (“Plaintiff”), against defendants Regents of the University of California (“Regents”) and Howard Gillman (“Gillman”) (collectively, “Defendants”). ROA 178. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2031.240 and 2031.310, compelling Defendants to serve further documents responsive to Requests for Production, Set One, Nos. 11-73 and 76-88, and to produce a privilege log substantiating Defendants’ objections on privilege grounds. ROA 178, pp. 5, 10. Defendants request that the Court deny Plaintiff’s Motions in their entirety. ROA 205, p.14. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Demands California Code of Civil Procedure Section 2031.310 allows the requesting party to move for an order compelling further response to a [production] demand if, among other things, the demanding party deems that “[a] statement of compliance . . . is incomplete[,] [a] representation of inability to comply is inadequate, incomplete, or evasive[,] or [a]n objection in the response is without merit or too general.” Cal. Civ. Proc. Code § 2031.310(a). The motion must be accompanied by a meet and confer declaration and must set forth specific facts showing good cause justifying the discovery demand. Cal. Civ. Proc Code § 2031.310(b). Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith